

2014 WL 6383756 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Kings County

Danny HALLUMS, Plaintiff(s),
v.
THE CITY OF NEW YORK, Defendant(s).

No. 0015363-2014.
October 29, 2014.

Summons

Summons

[Michael L. Cserhalmi](#), [Michael L. Cserhalmi](#), P.C., 437 Middle Neck Road, Great Neck, NY 11023, (516) 482-6633, for plaintiff(s).

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this Summons, to serve a notice of appearance, on the Plaintiffs Attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: October 20, 2014

Plaintiff, complaining of the Defendant, by his attorneys, MICHAEL L. CSERHALMI, P.C., respectfully show to this Court and allege as follows:

FIRST: Upon information and belief, on the date of occurrence, the plaintiff was and still is a resident of the County of Kings, State of New York.

SECOND: That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under the laws of the State of New York.

THIRD: Upon information and belief, that at all times hereinafter mentioned, THE CITY OF NEW YORK employed the police officer(s) and others hereinafter mentioned in this complaint.

FOURTH: Prior hereto and on or about September 9, 2014 the plaintiff caused a written verified notice of claim to be filed with and served upon the proper officers, agents and/or employees of the defendant THE CITY OF NEW YORK, pursuant to the statute in each case made and provided.

FIFTH: More than thirty (30) days have elapsed since the service of such notice of claim and adjustment or payment thereof has been neglected or refused.

AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST

SIXTH: Upon information and belief, on or about Thursday, August 14, 2014 at approximately 12:50 AM in the lobby of plaintiff's residence, an apartment building, 459 Barbey Street, Brooklyn, NY 11207, the plaintiff was arrest by New York Police Department [NYPD] police officer **DANIEL PANCHYN**, Tax Registration #947323 [not legible], Command 594 [not legible], and/or other police officers of the New York Police Department [NYPD], whose name(s) and shield number(s) are unknown to the plaintiff, without probable cause, for allegedly violating [Penal Law §265.03\(1\) \(b\)](#), Criminal Possession of a Weapon in the Second Degree, a class C felony to wit, a loaded firearm.

SEVENTH: Upon information and belief, notwithstanding an overwhelming amount of proof that the plaintiff was never in possession of the loaded firearm, the plaintiff was handcuffed; removed from the lobby and placed into an NYPD vehicle; transported by said vehicle to a holding cell at a local Brooklyn precinct station house; and, remained in the holding cell at the local Brooklyn precinct station house for a period of time; and, was assigned Arrest #K14672889.

EIGHTH: The plaintiff was then transported to Brooklyn Central Booking; then released from custody, upon information and belief, pursuant to the direction of the District Attorney who dismissed all charges against the plaintiff prior to the plaintiff's Criminal Court arraignment [commonly known as the case being "343'd") on or about Thursday, August 14, 2014 at [NYPD], whose name(s) and shield number(s) are unknown to the plaintiff, to search the plaintiff without first making a proper investigation as to whether there was any legal basis for the search of the plaintiff; and,

E. In that the Defendant and its' employees were otherwise careless, reckless and negligent in which the stop, search and arrest of the plaintiff was carried out by the Defendant's employees.

FIFTEENTH: Upon information and belief, that as a result of the negligence of the Defendant in causing said arrest, the Plaintiff sustained serious personal injuries, was rendered sick, sore, lame and disabled; suffered a severe shock to his/her nervous system and sustained severe physical pain and mental anguish. Upon information and belief, some of said injuries will be permanent.

SIXTEENTH: That by reason of the foregoing, Plaintiff suffered damages in an amount to be determined upon the trial of this action.

SEVENTEENTH: The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION FOR CARELESSLY AND RECKLESSLY
FAILING TO PROPERLY TRAIN AND SUPERVISE ITS' EMPLOYEES**

EIGHTEENTH: Plaintiff repeats, reiterates and realleges each and every paragraph of the Complaint designated "SIXTH" through "NINTH" and "FOURTEENTH" with the same force and effect as if more fully and at length set forth herein.

NINETEENTH: Upon information and belief, the defendant negligently, carelessly and recklessly failed to properly train and supervise its' employees, in particular, New York Police Department [NYPD] police officer **DANIEL PANCHYN**, Tax Registration #947323 [not legible], Command 594 [not legible], and/or other police officers of the New York Police Department [NYPD], whose name(s) and shield number(s) are unknown to the plaintiff, who conducted the investigation leading up to the plaintiff's arrest; and directed and/or authorized New York Police Department [NYPD] police officer **DANIEL PANCHYN**, Tax Registration #947323 [not legible], Command 594 [not legible], and/or other police officers of the New York Police Department [NYPD], whose name(s) and shield number(s) are unknown to the plaintiff, to arrest the plaintiff; and New York Police Department [NYPD] police officer **DANIEL PANCHYN**, Tax Registration #947323 [not legible], Command 594 [not legible], and/or other police officers of the New York Police Department [NYPD], whose name(s) and shield number(s) are

unknown to the plaintiff, who arrested the Plaintiff; in that Defendant failed to train its' employee(s) in the proper manner in which to stop, search and arrest persons in general and the plaintiff in particular; and to otherwise act as reasonably, prudent police officers; failing to give the proper instruction to Defendant's employee(s) as to their deportment, behavior and conduct as representatives of their employers; and, in that the Defendant(s), their agents, servants and employees were otherwise reckless, careless and negligent.

are unknown to the plaintiff, who conducted the investigation leading up to the plaintiff's arrest in that the said Defendant employee(s) lacked the experience, deportment and ability to be employed by the Defendant; in that the Defendant failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employee(s) who lacked the mental capacity and the ability to function as an employee(s) of the Defendant; in that the Defendant, THE CITY OF NEW YORK, failed to investigate the above named employee(s) back ground; in that the employee(s) lacked the maturity, sensibility and intelligence to be employed by the Defendant; in that the Defendant knew of the lack of ability, experience, deportment and maturity of said employee(s) when Defendant hired him/them to be an employee(s); and, in that the Defendants, their agents, servants and employees were otherwise careless, negligent and reckless.

TWENTY-FIFTH: Upon information and belief, that as a result of the reckless hiring and/or retention of defendant's employees which culminated in causing plaintiff's arrest, the Plaintiff sustained serious personal injuries, was rendered sick, sore, lame and disabled; suffered a severe shock to his/her nervous system and sustained severe physical pain and mental anguish. Upon information and belief, some of said injuries will be permanent.

TWENTY-SIXTH: That by reason of the foregoing, Plaintiff has suffered damages in an amount to be determined upon the trial of this action.

TWENTY-SEVENTH: The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR DEPRIVATION OF FEDERALLY
SECURED RIGHTS UNDER FEDERAL CIVIL RIGHTS LAW 42 USC §1983**

TWENTY-EIGHTH: Plaintiff repeats, reiterates and realleges each and every paragraph of the Complaint designated "SIXTH" through "NINTH", "FOURTEENTH", "NINETEENTH" and "TWENTY-FOURTH" with the same force and effect as if more fully and at length set forth herein.

TWENTY-NINTH: Upon information and belief, on or about Thursday, August 14, 2014 at approximately 12:50 AM in the lobby of plaintiff's residence, an apartment building, 459 Barbey Street, Brooklyn, NY 11207, the plaintiff was arrested by New York Police Department [NYPD] police officer **DANIEL PANCHYN**, Tax Registration #947323 [not legible], Command 594 [not legible], and/or other police officers of the New York Police Department [NYPD], whose name(s) and shield number(s) are unknown to the plaintiff, without probable cause, for allegedly violating [Penal Law §265.03\(1\) \(b\)](#), Criminal Possession of a Weapon in the Second Degree, a class C felony, to wit, a loaded firearm; notwithstanding an overwhelming amount of proof that the plaintiff was never in possession of the loaded firearm, the plaintiff was handcuffed; removed from the lobby and placed into an NYPD vehicle; transported by said vehicle to a holding cell at a local Brooklyn precinct station house; and, remained in the holding cell at the local Brooklyn precinct station house for a period of time; and, was assigned thereafter, aforementioned defendant, its' agents, servants and employees seized and/or assaulted and/or laid hold of plaintiff including but not limited to intentionally, forcefully, fiercely, and tightly placing plaintiff in handcuffs; falsely arresting and imprisoning the plaintiff, and depriving plaintiff of his/her rights and liberties as set forth in the Constitutions of the United States and of the State of New York, handcuffed her and threatened plaintiff with the possible use of firearms and weapons and the use of physical force; in that they continued to seize and/or assault and/or lay hold of plaintiff and to imprison him/her without any conduct on the part of the plaintiff to so warrant, to wit:

a) in that all of the actions of the defendant, its' agents, servants and employees, were committed with the intention to cause bodily and mental injury to the plaintiff, to arrest, restrain and imprison the plaintiff without his/her consent, the plaintiff was at all times conscious of his/her arrest, did not consent to the false arrest and the imprisonment were not otherwise privileged; and, b) the arrest and imprisonment were not justified by probable cause or other legal privilege; defendant, its' agents, servants and employees, acting under the color of statute, ordinances, regulations, customs and usages of the State, City and County of Kings, and under the authority of their office as police officers for said City, falsely charged the plaintiff with [Penal Law §265.03\(1\) \(b\)](#), Criminal Possession of a Weapon in the Second Degree, a class C felony, to wit, a loaded firearm, although the defendant, its' agents, servants and employees, acting in such capacity, knew that such charges were false; and,

c) in that the defendant, its' agents, servants and employees caused an assault and battery when they in a hostile and/or offensive manner threatened, touched seized and/or assaulted and/or laid hold of plaintiff including but not limited to intentionally, forcefully, fiercely, and tightly placing plaintiff in handcuffs without his/her consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff, all without warrant, probable cause or any lawful cause whatever; and, d) that the defendant, its' agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants, their agents, servants and employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the reckless lack of cautious regard for the rights of the public including plaintiff; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendant; and, e) the failure of the defendant, its' agents, servants and employees to hire, train, supervise, discipline or in any other way control the police officers, in the exercise of their functions; in that their failure to enforce the laws of the State of New York and the City of New York was and is carried out willfully, wantonly, [maliciously, if cause of action for malicious prosecution stated in this complaint] and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the State and City of New York including plaintiff; and,

f) due to the acts of the defendant, its' agents, servants and employees herein, the failure of the City of New York to discipline and properly hire the police officers and the continued employment of the police officers presents a clear and present danger to the citizens of the City and State of New York; and,

g) that the said prosecution and criminal charges and hearings were instituted and procured by the defendant, its' agents, servants and employees in this action unlawfully and [maliciously, if cause of action for malicious prosecution stated in this complaint] and without any reasonable or probable cause whatsoever therefor. That the commencement and/or continuation of the criminal proceedings by the defendant against the plaintiff was without probable cause; and, h) that the defendant, its' agents, servants and employees permitted the use of policy and/or drafted policy that was violative of the constitutional rights of the above named plaintiff; and, in that each and all of the acts of the defendant, its' agents, servants and employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Kings, and under the authority of their office as police officers for said city and county.

THIRTY-SECOND: Upon information and belief, plaintiff did not commit any illegal act, either before or at the time he/she was falsely arrested and imprisoned, assaulted and battered, and deprived of his/her constitutional rights as set forth in the Constitution of the United States, [42 U.S.C. §1983](#), and, the Constitution of the State of New York.

THIRTY-THIRD: Upon information and belief, as a direct result of the illegal actions and conduct on the part of the defendant, its' agents, servants and employees, plaintiff was falsely arrested and imprisoned, seized and/or assaulted and/or laid hold of including but not limited to intentionally, forcefully, fiercely, and tightly being placed in handcuffs; placed into an NYPD vehicle; transported by said vehicle to a holding cell at a local Brooklyn precinct station house; remained in the holding cell at the local Brooklyn precinct station house for a period of time; then transported to Brooklyn Central Booking; then released from custody pursuant to the direction of the District Attorney who dismissed all charges against the plaintiff prior to the

plaintiff's Criminal Court arraignment [commonly known as the case being "343'd") on or about Thursday, August 14, 2014 at approximately 6:00 PM, plaintiff having been incarcerated as a result of this arrest for approximately seventeen (17) hours.

THIRTY-FOURTH: Upon information and belief, that at all times hereinafter mentioned, New York Police Department [NYPD] police officer **DANIEL PANCHYN**, Tax Registration #947323 [not legible], Command 594 [not legible], and/or other police officers of the New York Police Department [NYPD], whose name(s) and shield number(s) are unknown to the plaintiff, was/were employed in their respective capacities by the defendant THE CITY OF NEW YORK and was/were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

THIRTY-FIFTH: Upon information and belief, that at all times hereinafter mentioned, New York Police Department [NYPD] police officer **DANIEL PANCHYN**, Tax Registration #947323 [not legible], Command 594 [not legible], and/or other police officers of the New York Police Department [NYPD], whose name(s) and shield number(s) are unknown to the plaintiff, was/were acting pursuant to orders and directives from the defendant THE CITY OF NEW YORK.

THIRTY-SIXTH: Upon information and belief, that during all times hereinafter mentioned, the defendant police officers and each of them, separately, and in concert, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and the police officers here, separately and in concert, engaged in the illegal conduct here mentioned to the injury of the plaintiff, and deprived plaintiff of the rights, privileges and immunities secured to plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the laws of the United States.

THIRTY-SEVENTH: Upon information and belief, the Police Officers of the defendant THE CITY OF NEW YORK and its individual members who are agents, servants and employees of defendant, together with persons unknown to plaintiff, acting under color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of illegal harassment, assault and battery, false imprisonments and arrests at the time said plaintiff was lawfully in his/her home or in a motor vehicle or in a public place in the County of Kings, City and State of New York, in denial of rights, privileges and immunities guaranteed plaintiff and other citizens by the Constitution of the United States.

THIRTY-EIGHTH: Upon information and belief, this systematic pattern of conduct consists of a large number of individual acts of violence, intimidation, false arrest and false imprisonment visited on plaintiff and other citizens by members of the police department of defendant THE CITY OF NEW YORK, acting in concert with persons unknown to plaintiff and under color of law and said acts, while carried out under color of law, have no justification or excuse in law and are instead illegal, improper and unrelated to any activity in which police officers may appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

THIRTY-NINTH: Upon information and belief, although defendant knew or should have known of the fact that this pattern of conduct was carried out by its' agents, servants and employees, the defendant THE CITY OF NEW YORK, has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

FORTIETH: Upon information and belief, the unlawful and illegal conduct of the defendant, their agents, servants and employees and each of them, deprived plaintiff of the following rights, privileges and immunities secured to him/her by the Constitution of the United States and of the State of New York:

a) The right of plaintiff to be secure in his/her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and, b) The right of plaintiff to be informed of the nature and cause of the accusation against him/her as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and,

c) The right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

FORTY-FIRST: Upon information and belief, that by reason of the aforesaid violations, false arrest and false imprisonment, assault and battery caused by the defendant, its' agents, servants and employees who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiff and compel him/her to abandon his/her rights and privileges as provided to him/her in the Constitution of the United States of America, and provided to him/her in the Constitution of the State of New York, and laws thereto, the defendant, their agents, servants and employees violated [42 U.S.C. §1983](#) in that the defendant, its' agents, servants and employees acted as persons who under color of any statute, ordinance, regulation, custom or usage of the City of New York, subjected or caused to be subjected, a citizen of the United States or other persons within the jurisdiction, particularly the plaintiff thereof to be deprived of his rights, privileges or immunities received by the Constitution and laws of the United States of America and of the State of New York; was subjected to great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, was prevented from attending his/her usual business and vocation and was injured in his/her reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging plaintiff.

FORTY-SECOND: Upon information and belief, that by reason of the aforesaid intentional assault and battery, the false arrest and false imprisonment, and deprivation of his/her rights and liberties as guaranteed by the aforementioned constitutions, by the defendant, its' agents, servants and employees, acting within the scope of their authority, and without any probable or reasonable cause, the plaintiff suffered great bodily injury in and about the [if applicable: head, neck, back,] body and limbs and was rendered sick, sore, lame and disabled, and among other things, he suffered conscious pain and suffering, and that he was otherwise damaged.

FORTY-THIRD: That by reason of the foregoing, Plaintiff has suffered damages in an amount to be determined upon the trial of this action.

FORTY-FOURTH: The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff DANNY HALLUMS demands Judgment against the Defendant in the first cause of action in an amount to be determined upon the trial of this action; and Plaintiff DANNY HALLUMS demands Judgment against the Defendant in the second cause of action in an amount to be determined upon the trial of this action; and Plaintiff DANNY HALLUMS demands Judgment against the Defendant in the third cause of action in an amount to be determined upon the trial of this action; and Plaintiff DANNY HALLUMS demands Judgment against the Defendant in the fourth cause of action in an amount to be determined upon the trial of this action; and Plaintiff DANNY HALLUMS demands Judgment against the Defendant in the fifth cause of action in an amount to be determined upon the trial of this action; together with the costs and disbursements and counsel fees of this action.

Dated: Great Neck, New York October 20, 2014

Yours, etc.,

Michael L. Cserhalmi

MICHAEL L. CSERHALMI, P.C.

Attorneys for Plaintiff(s)

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